

UNITED STATES BANKRUPTCY COURT
SOUTHERN DISTRICT OF FLORIDA
www.flsb.uscourts.gov

**CLERK'S INSTRUCTIONS FOR DEPOSITS INTO
AND WITHDRAWALS FROM UNCLAIMED FUNDS**

Bankruptcy Rule 3011 sets forth the provisions for depositing and withdrawing unclaimed funds in this court.

I. Deposits Into Unclaimed Funds:

Trustees or others depositing funds into the court must submit the court's Local Form "Notice of Deposit of Funds with the U.S. Bankruptcy Court Clerk" (LF-26), which also requires the attachment of a list of all claimants containing required information, including name, amount of claim, amount allowed and last known address. Also see Unclaimed Funds User's Guide.

II. Withdrawals from Unclaimed Funds:

A. General Instructions

On June 1, 2026, the Bankruptcy Court for the Southern District of Florida adopted Official Form 1340, Application for Payment of Unclaimed Funds for use by all applicants to release unclaimed funds. Modifications to the official form are not permitted, and nonconforming forms will not be accepted.

Applicants must fully comply with the Form Instructions presented with Official Form 1340 and concurrently file Local Form 46UF, Certificate of Service of Applications for Payment of Unclaimed Funds. No deviation is permitted.

- Applicants must thoughtfully consider Box 4, Supporting Documentation, of the official application. Refer to the official set of instructions to identify requirements related to payee information, proof of identity, and entitlement to the funds.
 - Each application is carefully evaluated by the court, and parties are required to fully document their entitlement to funds. **As a point of clarity, know that every applicant**

bears the responsibility of attaching detailed documents in support of their claim.

- Proof of identity must be provided in unredacted form.
- All signatures and notarizations must be wet signatures. Electronic signatures and notarizations are not accepted.

➤ To obtain the official form and instructions, please visit:

<https://www.uscourts.gov/forms-rules/forms/application-payment-unclaimed-funds>

➤ To obtain all local forms, please visit:

<https://www.flsb.uscourts.gov/forms/local-forms>

B. Issuance of Payment:

As set forth in Local Form 29, “Order Approving Application for Payment of Unclaimed Funds,” the Clerk will disburse these funds not earlier than 14 days after entry of an order.

If a check is to be issued for an application submitted by an attorney or “funds locator,” it will be payable to the person on whose behalf application was submitted and to the attorney or “funds locator.” This will ensure that the person on whose behalf the application was submitted is aware that a check has been issued to the applicant. If the application is signed by an individual on behalf of a non-individual, the check will be issued in the non-individual (i.e. company) name. If the court approves an application for funds deposited in a joint debtor case, the check will be issued in the name of both debtor applicants unless the court determines that the funds are payable to only one of the joint debtors.

A domestic claimant who is an individual must use either AO-2013P or W-9 certification form to receive payment via Electronic Funds Transfer (EFT). A foreign claimant must use a W-8 certification form accompanied by an AO-215 form. Links to these forms are in the official instructions.

IMPORTANT NOTE: Any indication of fraud related to unclaimed funds withdrawal requests will be reported to the U.S. Attorney.

C. Submittal of Application:

Completed applications along with all required documentation and forms, must be mailed to the Financial Section, United States Bankruptcy Court, Southern District of Florida, 301 N. Miami Avenue Room 150, Miami, Florida 33128.

If you have any questions regarding depositing or claiming funds, the official instructions and related forms, please contact this court's financial section at (305) 714-1841 or 714-1848 or write to: Financial Section, United States Bankruptcy Court, Southern District of Florida, 301 N. Miami Avenue Room 150, Miami, Florida 33128.